

San Mateo Police Department



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August 26, 2026

Brian C.

RE: Public Records Act Request # #W013271-081926

Dear Brian:

In accordance with Government Code § 7922.525, a legal review of your request has been completed. Any redactions or exemptions cited in the Department's response have been reviewed and authorized by the signatory of this letter.

This letter responds to your California Public Records Act ("CPRA") request dated August 19, 2026, submitted under Reference #W013271-081926, in which you requested the following records:

1. Communications between the Department and Stockton Police Department or Yuba City Police Department referencing searches conducted on behalf of, or at the request of, federal agencies.

Department Response:

No responsive records.

2. Records of any assessment conducted under the practice described in the Department's July 4, 2026 correspondence with respect to Stockton Police Department or Yuba City Police Department — including records reflecting the assessment's initiation, the criteria applied, and its disposition.

Department Response:

No responsive records.

3. Communications between the ALPR Committee Captain or authorized designee (per the Department's records, Lt. Steve Casazza) and Flock Safety referencing the searches described in the Context section or referencing federal-agency-related search activity by partner agencies.

Department Response:

No responsive records.

4. Any record of review of Stockton Police Department's or Yuba City Police Department's status as a recipient of San Mateo ALPR data in connection with changes to the Department's sharing configuration during July and August 2026.

Department Response:

No responsive records.

5. Any network audit report or equivalent record listing searches conducted by other agencies against San Mateo ALPR data, for any period; and any request by the Department to Flock Safety for such a report, together with any response.

Department Response:

The records you seek are contained in the audit logs from the San Mateo Police Department's Automated License Plate Reader ("ALPR") system. Specifically, you have requested records reflecting searches conducted by an outside law enforcement agency accessing the Department's ALPR data through the Flock Safety network sharing platform.

The requested records, in their entirety, are exempt from disclosure pursuant to Government Code § 7923.600, Government Code § 7922.000, Evidence Code § 1040, and Civil Code § 1798.90.55.

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by a law enforcement agency in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency's ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

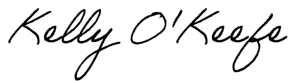
Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.

Automated License Plate Reader (ALPR) Exemption (Civil Code § 1798.90.55).

Your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law. In addition, the Flock Platform does not display the names of officers from external agencies on our portal. Any such information, if available, must be requested directly from the originating agency.

Best Regards,

A handwritten signature in black ink that reads "Kelly O'Keefe". The signature is written in a cursive, flowing style.

Kelly O'Keefe
Police Technical Services Administrator